

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 71

AFFAIRE DES PHARES EN CRÈTE
ET A SAMOS

ARRÊT DU 8 OCTOBRE 1937

1937

JUDGMENT OF OCTOBER 8th, 1937

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 71

LIGHTHOUSES IN CRETE
AND SAMOS

LEYDE
SOCIÉTÉ D'ÉDITIONS
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PERMANENT COURT OF INTERNATIONAL JUSTICE

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[Translation.]

LIGHTHOUSES IN CRETE AND SAMOS

Application, in a particular case, of a judgment already rendered by the Court (see Series A./B., No. 62).

Period at which the islands of Crete and Samos are to be regarded as having been "detached from the Ottoman Empire". Meaning of this expression.

Application of Article 9 of Protocol XII signed at the same time as the Treaty of Lausanne of July 24th, 1923.

Character of the autonomy enjoyed, prior to 1913, by the islands of Crete and Samos. Its scope determined by the international treaties and by the Cretan and Samian Constitutions.

JUDGMENT.

Present: M. GUERRERO, President; Sir CECIL HURST, Vice-President; Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, URRUTIA, NEGULESCO, Jhr. VAN EYSINGA, MM. CHENG, HUDSON, DE VISSCHER, Judges; M. SÉFÉRIADÈS, Judge ad hoc.

In the case concerning lighthouses in Crete and Samos,
between

the Government of the French Republic, represented by
M. J. Basdevant, as Agent,

and

the Royal Greek Government, represented by M. N. Politis,
as Agent, and M. D. Drossos, as Assistant Agent,

The Court,

composed as above,

delivers the following judgment :

By a Special Agreement signed at Paris on August 28th, 1936, the French and Greek Governments agreed to submit to the Court the question of the applicability, as regards lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, of the principle laid down in the judgment rendered by the Court on March 17th, 1934, this question being regarded on both sides as accessory to the principal question already decided by the Court.

The two Governments, having regard to the nature of the question submitted to the Court, recognized in the Special Agreement that that instrument should take effect as from the date of its signature and might be transmitted to the Court by either Party. The Special Agreement was filed with the Registry of the Court on October 27th, 1936, by the French Minister at The Hague.

The Parties request the Court, taking into account the period at which the territories in question were detached from the Ottoman Empire, to give its decision on the following question :

“Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the ‘*Administration générale des Phares de l’Empire ottoman*’, and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were assigned to that Government after the Balkan wars.”

The subject of the dispute has thus been indicated in accordance with Article 40 of the Statute.

On October 27th, 1936, the filing of the Special Agreement was notified to the Greek Government in accordance with Article 33, paragraph 2, of the Rules; on October 31st, the

communications provided for in Article 40 of the Statute and Article 34 of the Rules were duly despatched.

As the Court included on the Bench no judge of Greek nationality, the Greek Government availed itself of its right under Article 31 of the Statute and nominated Professor S. P. Séfériadès to sit in this case.

The Special Agreement states that, in regard to all points not provided for therein, the Court "is requested to follow the Special Agreement of July 15th, 1931" (submitting to the Court the Lighthouses case between France and Greece, which formed the subject of the above-mentioned Judgment of March 17th, 1934), "it being agreed that the time-limits for the filing of the Memorials and Counter-Memorials mentioned in Article 3 of this Special Agreement shall only begin to run as from October 15th, 1936".

In the said Article 3 of the Special Agreement of July 15th, 1931, the Parties proposed that the Court should

"fix a period of three months as from the date fixed in the Order made by the Court for the purpose (the time-limit granted to the Government of the French Republic and to the Government of the Greek Republic) of the presentation of their respective Cases setting out their views on the question and formulating their submissions, and a period of three months as from the date of filing of these Cases for the presentation of their Counter-Cases in reply, in which, if necessary, they shall formulate any additional submissions".

In the present case as in the previous one, the Parties did not propose the fixing of a time-limit for the presentation of a Reply by each of them. It is to be observed in this connection that, in an Order made on July 28th, 1933, and referred to in the Judgment of March 17th, 1934, the Court stated that a clause in a special agreement, drawn in terms such as those of the above-quoted Article 3, implied an agreement between the Parties to waive the right to present a Reply.

By an Order made on January 13th, 1937, the President of the Court, as the Court was not sitting, fixed December 17th, 1936, as the date from which the time-limits which were fixed in accordance with the proposals of the Parties should begin to run.

The Memorials and Counter-Memorials were duly filed within the time-limits thus fixed. The Counter-Memorials having been filed on June 10th, 1937, the case became ready for hearing on that date.

In its Memorial the French Government prays the Court :

"To adjudge and declare that the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the *Administration générale des Phares de l'Empire*

ottoman', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete (including the adjacent islets) and of Samos, which were assigned to that Government after the Balkan wars."

The Greek Government, for its part, in its Memorial prays the Court :

"To adjudge and declare that the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the '*Administration générale des Phares de l'Empire ottoman*', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was not duly entered into and is accordingly inoperative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete (including the adjacent islets) and of Samos, which were assigned to that Government after the Balkan wars."

These submissions were not amended in the respective Counter-Memorials.

In the course of public sittings held on June 28th and 29th, 1937, the Court heard :

M. Basdevant, Agent, on behalf of France ;

and M. Politis, Agent, on behalf of Greece.

The submissions formulated in the documents of the written procedure were maintained in their entirety by both Parties in their oral arguments.

Numerous documents in support of their contentions were filed on behalf of each Party¹.

The above being the state of the proceedings, the Court must now adjudicate.

* * *

The circumstances in which the dispute has been submitted to the Court are as follows.

By its Judgment of March 17th, 1934², the Court decided that

"the contract of April 1st/14th, 1913, between the French firm Collas & Michel, known as the '*Administration générale des Phares de l'Empire ottoman*', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories assigned to it after the Balkan wars or subsequently".

¹ See list in annex.

² *Publications of the Court*, Series A./B., Fasc. No. 62.

This decision was however immediately preceded by the following "reservation":

"Moreover, the Court holds that the Special Agreement only requires it to decide on a question of principle, and that it is not called upon to specify which are the territories, detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 is operative are situated. It is moreover all the more necessary to make this reservation because the Parties have not argued before the Court the questions of fact and of law which might be raised in that connection and which the Court has not been asked to decide."

By a *note verbale* addressed on July 17th, 1934, by the Greek Ministry for Foreign Affairs to the French Legation at Athens, the Greek Government, while declaring itself prepared to execute the judgment, drew attention to the point thus reserved, observing "that according to the actual terms of the judgment the Court of International Justice has only decided a *question of principle*; it was not called upon to specify which are the territories covered by the impugned contract in so far as concerns lighthouses situated in them and it refrained from so doing". The note goes on as follows: "Since, therefore, this question remains open, the Greek Government, after mature reflection, considers that the lighthouses in Crete and Samos remained outside the ambit of the contract concluded on April 1st/14th, 1913, between the concessionary firm and the Ottoman Porte, as the territories in which they are situated were detached from Turkey well before that date."

The *note verbale* of July 17th, 1934, concludes with the following words: "On the basis of the foregoing considerations, the Greek Government is firmly convinced that the 1913 contract, as to the validity of which the Court of International Justice was called upon to decide, does not in any case cover lighthouses in the islands of Crete and Samos. This contract was entirely inoperative in so far as concerns these islands, which were detached from Turkey before 1913, just as it is now in so far as concerns Greece, the legal successor of those islands which were previously autonomous territories incorporated in the territory of Greece in 1913."

As the French Government was unable to accept the standpoint set out in the above-mentioned note of the Greek Government, the two Governments agreed to submit the dispute for decision by the Permanent Court of International Justice.

The Special Agreement of August 28th, 1936, which constitutes the basis of the present proceedings, is as follows:

"The Permanent Court of International Justice having in its Judgment of March 17th, 1934, made the reservation 'that the

Special Agreement only requires it to decide on a question of principle and that it is not called upon to specify which are the territories, detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 is operative are situated'.

And a difference of opinion having arisen between the Government of the French Republic and the Government of the Kingdom of Greece, regarding the applicability of the principle laid down in the said judgment in the case of lighthouses situated in Crete, including the adjacent islets, and in Samos.

The aforesaid question being regarded on both sides as accessory to the principal question which has already been decided by the Permanent Court of International Justice.

The two Governments have considered that it should be referred to the Permanent Court of International Justice.

Accordingly they request the Court, taking into account the period at which the territories specified below were detached from the Ottoman Empire, to give its decision upon the following question :

'Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the '*Administration générale des Phares de l'Empire ottoman*', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were assigned to that Government after the Balkan wars.'

In regard to all points not provided for in this Agreement, the Court is requested to follow the Special Agreement of July 15th, 1931, it being agreed that the time-limits for the filing of the Memorials and Counter-Memorials mentioned in Article 3 of this Special Agreement shall only begin to run as from October 15th, 1936.

The answer to the question submitted to the Court being regarded as relating to the applicability in a particular case of the judgment already rendered by the Court, the two Governments recognize the present Agreement as taking effect as soon as it has been signed and agree that it may be transmitted to the Court by either Party.

In faith whereof the undersigned, being duly authorized so to do, have signed the present Agreement.

Paris, August 28th, 1936.

(Signed) YVON DELBOS.

(Signed) N. POLITIS."

* * *

The subject of the present dispute is clearly defined by the Special Agreement. The difference of opinion which has arisen between the two Governments since the 1934 judgment relates to "the applicability of the principle laid down in the said judgment" (para. 2). The two Governments agree in regarding this question "as accessory to the principal question which has already been decided by the Permanent Court of International Justice" (para. 3) and to regard the answer to it "as relating to the applicability in a particular case of the judgment already rendered by the Court" (para. 7).

Thus the present dispute is explicitly confined to the single question which was reserved by the Court's Judgment of March 17th, 1934. It in no way reopens the "question of principle", which was decided in that judgment and which is now *res judicata*, namely that, in itself, the contract of April 1st/14th, 1913, was duly entered into. The Parties simply ask the Court whether or not the island of Crete, including the adjacent islets, and the island of Samos, are included amongst the territories to which the Court's decision on the question of principle applies and whether, consequently, the above-mentioned contract was "duly entered into" in so far as concerns them.

The issue thus formulated amounts to the question what special reasons or circumstances were contemplated and recognized by the Parties to the Special Agreement as a possible ground for an exception to the principle adopted by the 1934 judgment, such as would warrant the exclusion of the territories of Crete and Samos from the application of that judgment.

The Court considers that the Parties have expressed themselves very clearly on this point in their Special Agreement; for the question formulated between quotation marks in paragraph 5 is introduced by the following words which define and limit its scope: "[The two Governments] request the Court, taking into account the period at which the territories specified below were detached from the Ottoman Empire, to give its decision upon the following question...."

Accordingly there is one circumstance, and one circumstance only, which will warrant an exception to the application of the Judgment of March 17th, 1934, on the question of principle, namely: the period at which detachment from the Ottoman Empire took place in the case of the territories in question. This conclusion is fully borne out by the *note verbale* of July 17th, 1934, above mentioned, in which the Greek Government explains that, in its view, the lighthouses situated in the territories of Crete and Samos "remained outside the ambit of the contract concluded, as the territories in which they are situated were detached from Turkey well before that date". It follows that

in deciding the question submitted to it the Court cannot, without disregarding the terms of the Special Agreement, take into account considerations which might warrant an exception to the applicability of the principle laid down by the Judgment of March 17th, 1934, for reasons other than the sole ground for an exception admitted by the Parties.

As the Special Agreement links together in a necessary relation of cause and effect the period at which the detachment of the territories took place and the validity of the contract in respect of these same territories, it is essential to determine the period at which the territories of Crete, including the adjacent islets, and of Samos were respectively detached from the Ottoman Empire.

In this connection Article 9 of Protocol XII¹ signed at the same time as the Treaty of Lausanne of July 24th, 1923, must logically be considered first. For this stipulation, which is binding on both Parties, formed the basis of the judgment on the question of principle rendered by the Court on March 17th, 1934. The first question therefore is whether that Article warrants in favour of Crete and Samos an exception to the principle laid down by the Court's decision.

Article 9 says that a State succeeding to Turkish territory is subrogated as regards the rights and obligations of Turkey "in territories detached from Turkey after the Balkan wars so far as regards concessionary contracts entered into with the Ottoman Government or any Ottoman local authority before the coming into force of the treaty providing for the transfer of the territory". The Article adds that "this subrogation will have effect as from the coming into force of the treaty by which the transfer of territory was effected....".

It is to be observed that this stipulation is couched in general terms; it makes no exception or reservation. Article 9 applies to all the territories which were detached from Turkey after the Balkan wars, without regard to the special status possessed by some of them under the Ottoman Empire. Again, in Article 9, the idea of the detachment of the territories is closely connected with and correlated to that of their assignment to another sovereign: both ideas constituting the elements in the transfer of territory mentioned in the same Article. This provision leaves no room for a break in continuity of the sovereignty over the territories referred to therein. It provides for the direct and immediate succession of Greece to the obligations contracted by the Ottoman Empire in respect of the territories over which Ottoman sovereignty is ceded. The close correlation established between the detachment and assignment of the

¹ *Publications of the Court*, Series C., No. 74, p. 68; *League of Nations, Treaty Series*, Vol. 28, p. 203.

territories by Article 9 of Protocol XII was recognized by the Agent for the Greek Government in his oral statement on June 28th, 1937. It had already been emphasized by the Court in a passage in its Judgment of March 17th, 1934 (p. 28), where the Court said that the expression "territories which were assigned" to Greece "after the Balkan wars or subsequently" used in the Special Agreement of July 15th, 1931, and the expression "territories detached from Turkey after the Balkan wars" in Article 9, meant the same territories, "all the more so, since neither Party, when discussing Article 9, has suggested that there is any substantial difference between the territories referred to in these two texts". Finally the same correlation is emphasized in the following paragraph, containing the reservation of which the Greek Government is now availing itself. In that paragraph the judgment speaks of "territories detached from Turkey and assigned to Greece after the Balkan wars....".

It follows from the foregoing that there is nothing in the text of Article 9 of Protocol XII to warrant any differentiation between the various territories which were assigned to Greece, from the standpoint of the applicability of the decision rendered by the Court on the question of principle in 1934.

The reasoning of the Greek Government as stated by its Agent, in particular in his oral pleadings (on June 28th and 29th, 1937), seeks precisely to preclude any contention based on the absence of differentiation in Article 9. The line of argument is as follows: Article 9 had no need to differentiate, because having been framed to meet a different case from that which is now submitted to the Court, it is, *a priori*, incapable of being applied to the territories of Crete and Samos. Thus, we are told, Article 9 could not do otherwise than consider the detachment and the assignment of the territories as two aspects of a single operation, for the hypothesis envisaged by that Article was that of territories transferred from the sovereignty of Turkey to another sovereignty. According to the contention of the Greek Government, the situation of the territories of Crete and Samos is of an entirely different order. The latter territories, which enjoyed a wide autonomy, were not and could not have been detached from Turkey by a transfer of sovereignty from that State to Greece, seeing that in 1913 Turkey had long since lost her sovereignty in regard to them. It follows, according to this argument, that in April 1913 the Ottoman Government no longer had any title, competence or capacity to conclude the contract of April 1st/14th, 1913, and accordingly the contract, though valid in itself, was not duly entered into or validly concluded in respect of these territories. It is in this sense, in the Greek Government's contention, that the Court's judgment of 1934 requires to be "supplemented".

It must be borne in mind, in the first place, that in order to secure acceptance for its contention, no matter on what arguments it was founded, the Greek Government would have needed to prove that, at the time of the conclusion of the contract in dispute, the territories of Crete and Samos were already, in law, territories detached from the Ottoman Empire, in the full meaning of the word "detached", which in the opinion of the Court connotes the entire disappearance of any political link. For, as has been already observed, it is the date of the detachment of the territories which is decisive in this case. The wide forms of autonomy conferred on the territories in question could only be taken into consideration for the solution of the present dispute, if they justified the conclusion that the autonomous territories were already, at the date of the contract, detached from the Ottoman Empire to the extent that every political link between them and the Sublime Porte had been severed, so that the Sultan had lost all power to make contracts in regard to them. It is from that standpoint alone that the Special Agreement, which respects the *res judicata* of 1934, authorizes the Court to consider the question of Cretan and Samian autonomy; there is no occasion to examine the nature of these forms of autonomy or their juridical character from any other standpoint. The issue, reduced to its essence, may be stated as follows: had every political link between the Ottoman Empire and the islands of Crete and Samos disappeared at the time of the conclusion of the contract in dispute, that is to say, on April 1st/14th, 1913? Only if it were shown that no such link subsisted on that date, would it be possible to regard these territories as having been already detached from the Ottoman Empire before the conclusion of the contract, and to consider the latter as not having been duly entered into in regard to the aforesaid territories.

The Court finds that this has not been shown by the Greek Government.

Notwithstanding its autonomy, Crete had not ceased to be a part of the Ottoman Empire. Even though the Sultan had been obliged to accept important restrictions on the exercise of his rights of sovereignty in Crete, that sovereignty had not ceased to belong to him, however it might be qualified from a juridical point of view. That situation persisted until the time when Crete was separated from the Ottoman Empire by treaties, which were treaties of cession, and became a "detached territory" within the meaning of Article 9 of Protocol XII. These treaties are subsequent to the conclusion of the contract in dispute.

The first of them, in chronological order, is the Treaty of Peace signed in London on May 17th/30th, 1913, between Bulgaria, Greece, Montenegro, Serbia and Turkey, a treaty which

though not ratified was maintained as between Greece and Turkey by the Treaty of Athens of November 1st/14th, 1913. The Treaty of London states expressly in Article 4, which relates to Crete, that

“His Imperial Majesty the Sultan declares that he cedes to Their Majesties the Allied Sovereigns the island of Crete and renounces in their favour all rights of sovereignty and all other rights which he possessed over that island¹.”

It would be difficult to find more decisive evidence of the persistence of the Sultan's sovereignty up to that date than is furnished by this formal renunciation made by the latter in an international instrument signed by Greece.

As regards Samos, after the Sultan had declared in Article 5 of the Treaty of London of May 17th/30th, 1913—which was maintained, as stated above, between Turkey and Greece by the Treaty of Peace of Athens of November 1st/14th, 1913—that he entrusted to the Powers the decision as to the future of all the Ottoman islands in the Aegean Sea, except the island of Crete, Samos was assigned to Greece by the decision of the Powers on February 13th, 1914. This decision was confirmed by Article 12 of the Treaty of Lausanne of 1923, in which Samos is expressly mentioned.

The conclusion follows inevitably that the lighthouses in Crete and Samos are lighthouses situated in territories which not only were assigned to Greece after the Balkan wars but also were not detached from the Ottoman Empire until that time. Article 9 of Protocol XII of Lausanne is therefore applicable to the contract of April 1st/14th, 1913, and that contract must be considered as having been duly entered into, and as accordingly operative in regard to Greece in respect of the said territories. The “particular case” therefore falls within the scope of the decision on the question of principle delivered by the Court on March 17th, 1934.

In opposition to this conclusion, deduced from the international instruments, the Greek Government has argued that Samos, since 1832, and Crete, since 1899 and in any case since 1907, did in fact enjoy a régime of autonomy which was so wide that those islands must be regarded as having been thenceforward detached from the Ottoman Empire.

No confirmation of this view is obtained by the examination either of the Cretan Constitutions or of the organic Statute of Samos. The autonomy of Crete was only recognized by the Constitutions of 1899 and 1907 “under the conditions established by the four Great Powers”. These conditions

¹ Translation taken from the American Journal of International Law, Vol. 8, 1914.

emphasized "the supreme rights of H.I.M. the Sultan over Crete" (notification of Nov. 30th, 1898, Memorial of the Greek Government, Annex 7) and the "legitimate rights of the Sultan" (*pro memoria* of March 28th, 1899, Memorial of the French Government, Annex 2). So far as concerns the island of Samos, the *Hatt* or organic Statute of December 22nd, 1832, definitely proclaimed its dependence on the Sublime Porte. Samos is described therein as forming "part of the hereditary estates of H.M. the Sultan Mahmoud Khan" (Memorial of the Greek Government, Annex 21), and the concessions conferred by the Statute are expressly subordinated by it to the condition that the inhabitants of the island "should henceforth be faithful subjects of the Ottoman Empire". The provisions of the Statute, and especially those concerning the appointment and powers of "the chief of the island" and the homage due to the Sultan, leave no doubt as to the continued political subordination of Samos. Nor does any different conclusion follow from a study of the *Hatt* or additional regulation of September 16th, 1852 (Memorial of the Greek Government, Annex 22).

As the Court has reached the conclusion that Crete and Samos still formed part of the Ottoman Empire on April 1st/14th, 1913, the date of the contract in dispute, there is no need for it to discuss the objection to the effect that the contracting Parties could not have intended that their contract should cover these territories, in view of the fact that the latter had already been definitively removed from the Sultan's sovereignty at the above-mentioned date. Moreover, it must be remembered that the Judgment of March 17th, 1934, declared that, in the absence of any express statement of a contrary intention, the object of the contract of 1913 must be regarded as identical with that of the original contract of 1860, which is applicable to the whole of the Ottoman Empire.

FOR THESE REASONS,

The Court,

by ten votes against three,

decides

that the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the "*Administration générale des Phares de l'Empire ottoman*", and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, was duly entered into and is accordingly operative as regards the Greek Government in so far as concerns lighthouses situated

in the territories of Crete, including the adjacent islets, and of Samos, which were assigned to that Government after the Balkan wars.

This judgment has been drawn up in French in accordance with the terms of Article 39, paragraph 1, second sentence, of the Statute of the Court, the Parties having agreed in the Special Agreement that the case should be conducted in French.

Done at the Peace Palace, The Hague, this eighth day of October, one thousand nine hundred and thirty-seven, in three copies, one of which is to be placed in the archives of the Court and the others to be forwarded to the Government of the French Republic and the Royal Greek Government respectively.

(Signed) J. G. GUERRERO,
President.

(Signed) J. LÓPEZ OLIVÁN,
Registrar.

Sir CECIL HURST, Vice-President, Mr. HUDSON, Judge, and M. SÉFÉRIADÈS, Judge *ad hoc*, declare that they are unable to concur in the judgment given by the Court and, availing themselves of the right conferred upon them by Article 57 of the Statute, have appended to the judgment the separate opinions which follow.

Jonkheer VAN EYSINGA, Judge, while in agreement with the operative clause of the judgment, has appended a separate opinion regarding the grounds on which the judgment is based.

(Initialled) J. G. G.

(Initialled) J. L. O.